

		Civ. Proc., §§ 2023.010, 2031.300, subd. (c).) Creditors request a reasonable \$1,520 in monetary sanctions on this motion. (Rader Decl. ¶ 6.) Based on the foregoing, the motion is GRANTED. Debtor is ordered to serve code-complaint responses, without objections, to the requests for production and to produce all responsive documents within 20 days of service of written notice of the ruling. The request for monetary sanctions also is GRANTED. Creditors are awarded \$1,520 in attorney fees as against Debtor and its counsel of record, jointly and severally, payable to Creditors' counsel within 30 days of service of notice of this ruling. Creditors' counsel is ordered to give notice of these rulings.
6.	<i>Brimm vs. Mobilitas Insurance Company</i> <i>2026-01565804</i>	<u>Please see the above notice regarding oral argument on June 25, 2026</u> Before the court is the motion of Mobilitas Insurance Company (Mobilitas) to compel Byle Brimm (Brimm) to respond to requests for production of documents, set one, and request for monetary sanctions. As set forth below, the motion is CONTINUED TO THURSDAY, JULY 9, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Mobilitas to demonstrate this court has jurisdiction over Brimm and that this court is the proper court for these proceedings. This case is an uninsured or underinsured motorist case filed pursuant to Insurance Code section 11580.2, subdivision (f), to obtain a case number for purposes of having the court resolve any discovery disputes that may arise between the parties or otherwise make any other appropriate orders in aid of the arbitration between the parties. By the current motion, Mobilitas seeks an order compelling Brimm to respond to document requests Mobilitas propounded. Mobilitas, however, has failed to establish this court is the proper venue for these proceedings. Section 11580.2, subdivision (f), provides the superior court having jurisdiction over uninsured motorist proceedings such as this is the superior court (a) in the proper county for the filing of a lawsuit against the uninsured motorist for bodily injury arising from the accident or (b) in any county specified in the policy as a proper county for arbitration or action on the policy. (See Ins. Code, § 11580.2(f)(1), (2).) Here, the petition states the underlying accident occurred in San Francisco. Nothing is presented to show this court is the proper court for these proceedings. The court will need

		a declaration or other evidence showing this court is the court having jurisdiction over these proceedings. Similarly, it is unclear this court has personal jurisdiction over Brimm sufficient to allow it to make the requested order directing Brimm to take certain actions. The court's file shows the petition initiating these proceedings and this motion were electronically served on an attorney (Eric R. Gruber) on Brimm's behalf. Typically, personal service of a case initiating document on the defendant or respondent is necessary to confer jurisdiction over the defendant or respondent. The court acknowledges service on counsel may be sufficient in proceedings such as these. (See <i>Miranda v. 21st Century Ins. Co.</i> (2004) 117 Cal.App.4th 913, 927-928.) Mobilitas, however, has not presented sufficient evidence to show <i>Miranda</i> applies in this case so as to provide the court with jurisdiction to make the requested order. Mobilitas should submit a declaration or other evidence showing this court has jurisdiction over Brimm. Any supplemental declarations or other filings addressing these issues must be filed and served by July 1, 2026. Based on the foregoing, the motion is CONTINUED as set forth above. Mobilitas's counsel is ordered to give notice of this ruling.
7	<i>In re: 23726 Dolphin Cover, Laguna Niguel, CA 92677</i> 2026-01541675	<u><i>Please see the above notice regarding oral argument on June 25, 2026</i></u> On April 9, 2026, the court heard the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale filed by petitioner Prestige Default Services, LLC (Petitioner). Petitioner filed the petition under Civil Code section 2924j following a trustee's sale pursuant to a deed of trust that Petitioner conducted on or about June 24, 2024, regarding the property located at 23726 Dolphin Cove, Laguna Niguel, California 92677 (Property). After paying off the trust deed and all senior liens, the claim of Foothill Town Homes Community Association, and Petitioner's fees and expenses, Petitioner seeks to deposit the surplus funds of \$623,084.12 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner is unable to distribute these surplus funds. On April 9, 2026, the court granted the petition and ordered Petitioner to deposit the surplus funds with the court. On